

		For COA 6, the Demurrer is SUSTAINED, with 15 days leave to amend. The claim as pled appears to be time-barred under C.C.P. § 338(d): the vague assertions in the FAC at ¶ 37 do not suffice to allege delayed discovery. The claim as pled also lacks adequate specificity. The elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) defendant intended to defraud plaintiff by intentionally concealing or suppressing the fact; (4) plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40.) Every element must be alleged in full, factually and specifically. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) The specificity requirement “provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship.” (<i>Rattagan v. Uber Technologies, Inc.</i>, supra, 17 Cal.5th at 43.) Here, Plaintiff has provided only a vague description of the alleged defect(s) in his vehicle (FAC ¶¶ 78-81), without identifying what specifically occurred, when and how the defect(s) was discovered, what specific information was allegedly known to Ford concerning that defect, and when. Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Greater specificity is required. However, Defendants’ argument under the ELR fail here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i>, supra, 17 Cal.5th at 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent s based on the ELR, thus fails. Defendants are to give notice of this ruling.
14	Taxrise, Inc. vs. Vyapay, Inc.	Plaintiff Taxrise, Inc.’s (“Plaintiff”) unopposed Motion for Summary Judgment, or in the Alternative, Summary Adjudication (“Motion”) is DENIED. Plaintiff moves for summary judgment, or alternatively, summary adjudication on each of its five causes of action (“COA”) solely against defendant Wain Swapp (“Swapp”). (Civ. Proc. Code § 437c(p)(1) and (f).) COA No. 1 – Breach of Written Contract